

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202106081	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/05/2021 11:15 PM	Location of Incident: Boerum Street and Bushwick Avenue	18 Mo. SOL 4/5/2023	Precinct: 90		
Date/Time CV Reported Mon, 10/11/2021 1:14 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/11/2021 1:14 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Volkan Maden	14352	956863	NARCBBN
2. SGT Joanna Barletta	00430	951523	090 PCT
3. SGT Andrew Hong	01035	953972	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Piotr Trusewicz	27088	967369	090 PCT
2. PO Michael Ignatz	19499	941927	090 PCT
3. PO Angelo Martino	23305	964145	090 PCT
4. PO Samantha Medina	11693	960924	090 PCT
5. PO Deirdre Collins	00215	965998	090 PCT
6. PO Ramses Cruz	06083	918899	090 PCT
7. PO Nicholas Cruz	25495	971026	094 PCT
8. PO Faisal Elwan	10625	968390	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Volkan Maden	Abuse: Police Officer Volkan Maden detained § 87(2)(b)	
B . PO Volkan Maden	Abuse: Police Officer Volkan Maden issued an unlawful summons to § 87(2)(b)	
C . SGT Joanna Barletta	Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b)	
D . SGT Joanna Barletta	Abuse: Sergeant Joanna Barletta threatened § 87(2)(b) with the use of force.	
E . SGT Joanna Barletta	Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b)	
F . SGT Joanna Barletta	Abuse: Sergeant Joanna Barletta threatened § 87(2)(b) with the use of force.	
G . SGT Joanna Barletta	Abuse: Sergeant Joanna Barletta threatened § 87(2)(b) with the use of force.	
H . PO Volkan Maden	Force: Police Officer Volkan Maden used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
I . PO Volkan Maden	Force: Police Officer Volkan Maden used a chokehold against § 87(2)(b)	
J . PO Volkan Maden	Force: Police Officer Volkan Maden restricted § 87(2)(b) breathing.	
K . SGT Joanna Barletta	Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b)	
L . SGT Andrew Hong	Force: Sergeant Andrew Hong used physical force against § 87(2)(b)	

Case Summary

On October 11, 2021, § 87(2)(b) filed this complaint online with the CCRB on behalf of § 87(2)(b) and an individual identified only by his first name, § 87(2)(b).

On October 5, 2021, at approximately 11:15 PM, in the vicinity of Boerum Street and Bushwick Avenue in Brooklyn, § 87(2)(b) and § 87(2)(b) exited a convenience store located at the location. Sergeant Joanna Barletta, Police Officer Volkan Maden and Police Officer Piotr Trusewicz of the 90th Precinct drove past the store in an unmarked vehicle. § 87(2)(b) waved at the officers as they passed. The officers made a U-turn and pulled over in front of § 87(2)(b). The officers exited the vehicle and PO Maden and PO Trusewicz approached § 87(2)(b). PO Maden instructed § 87(2)(b) to present his identification (**Allegation A: Abuse of Authority, § 87(2)(g)**). PO Maden then grabbed and placed § 87(2)(b) in handcuffs (**Allegation B: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) and § 87(2)(b) argued with the officers about why they stopped § 87(2)(b). SGT Barletta unholstered her Taser and pointed it at § 87(2)(b) and said, "Get the fuck back, or you will get Tased" (**Allegation C: Discourtesy, § 87(2)(g)**). (**Allegation D: Abuse of Authority, § 87(2)(g)**) SGT Barletta then pointed her Taser at § 87(2)(b) and said, "Step the fuck back or you will get Tased." (**Allegation E: Discourtesy, § 87(2)(g)**). (**Allegation F: Abuse of Authority, § 87(2)(g)**) SGT Barletta pointed her Taser at § 87(2)(b) (**Allegation G: Abuse of Authority, § 87(2)(g)**). At this time, PO Maden picked up § 87(2)(b) and allegedly slammed him to the ground (**Allegation H: Force, § 87(2)(g)**). PO Maden allegedly placed his knee on § 87(2)(b) neck for approximately five to six minutes (**Allegation I: Force, § 87(2)(g)**). (**Allegation J: Force, § 87(2)(g)**) PO Maden placed § 87(2)(b) in handcuffs and escorted him to the patrol vehicle. Sergeant Andrew Hong and other officers from the 90th Precinct arrived at the location. SGT Barletta instructed the additional officers to arrest § 87(2)(b) by saying, "Fucking ninety-two them!" (**Allegation J: Discourtesy, § 87(2)(g)**). SGT Barletta grabbed § 87(2)(b) arm and then SGT Hong and the other officers placed her on the ground where an officer allegedly placed their knee on § 87(2)(b) back (**Allegation L: Force, § 87(2)(g)**) and placed her in handcuffs. § 87(2)(b) and § 87(2)(b) were arrested as of result of the incident and transported to the 90th Precinct station house. § 87(2)(b) and § 87(2)(b) were each issued a summons for disorderly conduct and released (**BR1-3**). There were no injuries reported by either civilian or officers.

§ 87(2)(b) was issued Summons § 87(2)(b) (**BR21**). § 87(2)(b) was issued Summons § 87(2)(b) (**BR22**). § 87(2)(b) was issued Summons § 87(2)(b) (**BR23**).

The investigation received or LT Fox, SGT Barletta, PO Maden, PO Trusewicz, PO Collins, SGT Hong, SGT Casimir, PO Fernandez, PO Piselli, PO Beniquez, PO Medina, PO Cruz, PO Ignatz, PO Martino, PO Cruz, and PO Elwan. The BWC footage is attached to IA #37 (**BR5**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Volkan Maden detained § 87(2)(b).
Allegation (B) Abuse of Authority: Police Officer Volkan Maden issued an unlawful summons to § 87(2)(b).

It is undisputed that § 87(2)(b) and § 87(2)(b) stood in

front of a convenience store located at the incident location. SGT Barletta, and PO Maden were on patrol in their unmarked vehicle, operated by PO Trusewicz. When the officers drove down Boerum Street and Bushwick Avenue, § 87(2)(b) waved his hand at the unmarked vehicle. PO Trusewicz drove down the street, made a U-turn and pulled over in front of § 87(2)(b). All of the officers exited the patrol vehicle and approached § 87(2)(b).

§ 87(2)(b) stated (BR1) that he stood in front of the convenience store located at the incident location with § 87(2)(b) and § 87(2)(b) after they had purchased candy inside. § 87(2)(b) stood on the sidewalk and observed an unmarked vehicle on the road. § 87(2)(b) stated that he knew that there were police officers inside the vehicle due to its tinted windows. § 87(2)(b) waved his hand at the vehicle to say hello and to let the officers know that he saw them. The officers made a U-turn and pulled over in front of § 87(2)(b) and his friends. SGT Barletta, PO Maden and PO Trusewicz exited their patrol vehicle and approached § 87(2)(b). PO Maden asked § 87(2)(b) for his identification. § 87(2)(b) kept his identification inside his cross-body bag, and he began to open it to retrieve his identification. § 87(2)(b) did not mention using profanity towards the officers when they initially drove past him. § 87(2)(b) told PO Maden and PO Trusewicz that they were not doing their jobs properly. PO Maden approached § 87(2)(b) and attempted to grab him. § 87(2)(b) stepped in between § 87(2)(b) and PO Maden to separate them. § 87(2)(b) pushed PO Maden's hand away with one hand and used his other hand to push § 87(2)(b) arm. PO Maden grabbed § 87(2)(b) left arm with one hand and § 87(2)(b) told PO Maden to not touch him. PO Maden told § 87(2)(b) that he wanted to be a "tough guy." PO Maden grabbed § 87(2)(b) left arm and PO Trusewicz grabbed § 87(2)(b) right arm. PO Maden and PO Trusewicz held § 87(2)(b) against the patrol vehicle, and they applied handcuffs on him. § 87(2)(b) was removed to the 90th Precinct station house and issued a summons for disorderly conduct.

§ 87(2)(b) (BR4) and § 87(2)(b) (BR2 and BR3) statements are similar to § 87(2)(b) with the following differences. § 87(2)(b) did not mention § 87(2)(b) waving his hand at the unmarked vehicle. § 87(2)(b) stated that § 87(2)(b) waved his hand at officers in the unmarked vehicle. Neither of them mentioned § 87(2)(b) using profanity towards the officers when they initially drove past him.

The investigation was unable to interview § 87(2)(b) because none of § 87(2)(b) § 87(2)(b) nor § 87(2)(b) knew his surname or contact information.

PO Maden's (BR7), PO Trusewicz's (BR8), and SGT Barletta's (BR6) statements were largely similar. PO Trusewicz stated that he initially saw § 87(2)(b) § 87(2)(b) and § 87(2)(b) from a distance of one car-length away. PO Trusewicz observed § 87(2)(b) waving his hand at him and initially not think much of it. Immediately afterwards, PO Trusewicz heard § 87(2)(b) say to him and his partners, "Go fuck yourself, faggots! Suck a dick!" PO Maden did not recall specifically what was said by § 87(2)(b) and stated that it was something to the effect of "Fuck you!" "Suck my dick!" and "Get the fuck out!" SGT Barletta heard one of the individuals yell, "Suck my dick!" and "Fuck you!" SGT Barletta did not know whether the phrase was directed at officers or someone else.

PO Trusewicz stated that all of the officers made the collective decision to return to the location to speak with § 87(2)(b). PO Maden stated that PO Trusewicz made the decision to approach § 87(2)(b). SGT Barletta did not recall who made the decision to approach § 87(2)(b). PO Maden and PO Trusewicz stated that their intention was to write § 87(2)(b) a summons for disorderly conduct or to issue him a warning. SGT Barletta stated that cursing at officers alone is not a summonable offense and that she and her partners wanted to investigate why the group was

yelling and screaming. PO Trusewicz stated that there was a truck on the road and PO Trusewicz felt that it was unsafe to pull over. PO Trusewicz continued to drive northbound and made a U-turn at the end of the road and returned to the incident location. SGT Barletta stated that when she and the officers approached § 87(2)(b) and § 87(2)(b) they continued to scream, and yell and SGT Barletta did not know why. SGT Barletta and the officers asked § 87(2)(b) and his friends to disperse, and they refused. PO Trusewicz stated that § 87(2)(b) told officers to “Stop dickriding. What the fuck are you guys doing?” PO Maden and PO Trusewicz asked § 87(2)(b) to present his identification. § 87(2)(b) did not comply. PO Maden stated that officers must request for a person’s identification if they are stopped, and further added that the police cannot issue a summons without identifying the individual. PO Maden stated that he decided to take § 87(2)(b) into custody because he refused to provide his identification upon his request. SGT Barletta stated that, while § 87(2)(b) and his friends were not guilty of disorderly conduct at the moment officers stopped and approached them, they were guilty of disorderly conduct after the approach because they were screaming and yelling. She also noticed that several other people gathered around § 87(2)(b) and his friends, causing a crowd to form on the street.

According to SGT Barletta’s BWC video (BR27), at timestamp 0:42, SGT Barletta, PO Maden, and PO Trusewicz exit their patrol vehicle. The location is a mix of residential and commercial buildings. There is one passerby that briefly comes into frame and walks around the block at the time of the officers’ arrival.

According to PO Maden’s BWC video (BR25), the footage begins with PO Trusewicz making a U-turn. At timestamp 0:35, PO Trusewicz and PO Maden exit their patrol vehicle and approach § 87(2)(b). § 87(2)(b) walks in front of § 87(2)(b) and speaks with the officers. There is no audio recorded at this time. At timestamp 0:47, § 87(2)(b) approached PO Maden and PO Maden grabs the back of § 87(2)(b) safety vest from his employment and hold him back. At timestamp 0:52, PO Trusewicz points in the direction of § 87(2)(b) and appears to speak to him. § 87(2)(b) appears to be speaking with PO Maden and § 87(2)(b) flexes his chest. § 87(2)(b) holds back § 87(2)(b) from approaching PO Maden. PO Maden asks § 87(2)(b) “You coming in? What are you doing?” At timestamp 1:07, § 87(2)(b) says, “Let these niggas be dick riders.” At timestamp 1:10, § 87(2)(b) yells, “What are you doing this shit for. Stop fucking harassing us.” § 87(2)(b) and § 87(2)(b) tells § 87(2)(b) to stop yelling. § 87(2)(b) walks away from the officers and § 87(2)(b). At timestamp 1:17, PO Maden tells § 87(2)(b) “Come to the precinct! Come on, tough guy. Let’s do this!” At timestamp 1:20, § 87(2)(b) tells PO Maden that he will show him his identification. PO Maden tells § 87(2)(b) to tell § 87(2)(b) to leave the location. PO Maden accuses § 87(2)(b) of telling officers to “Get the fuck out of here” when they arrived earlier. § 87(2)(b) points to his chest and asks PO Maden if he thought he said that to him. PO Maden calls § 87(2)(b) a “tough guy” and instructs him to take out his identification. At timestamp 1:30, § 87(2)(b) reaches for his cross-body bag. PO Maden grabs § 87(2)(b) left arm and tells him to step aside. § 87(2)(b) lifts his left arm in an upwards motion. PO Maden tells § 87(2)(b) “Don’t do that to me. You’re dealing with the wrong guy,” and escorts him to the side of the patrol vehicle. At timestamp 1:44, PO Maden holds § 87(2)(b) right sleeve and asks for his identification. § 87(2)(b) tells PO Maden to let go of him. At timestamp, 1:47, PO Maden grabs § 87(2)(b) left wrist with his left hand. § 87(2)(b) pulls his wrist out of PO Maden’s grip. PO Maden tells § 87(2)(b) “Stop or you’re coming into the precinct.” § 87(2)(b) continues to pull his arm away from PO Maden. At timestamp 1:57, PO Maden applies handcuffs on § 87(2)(b).

While all of the officers consistently stated that § 87(2)(b) directed profanity and derogatory

statements at them as they drove by in their vehicle, the civilian statements obtained did not mention any of the phrases § 87(2)(b) allegedly said. The BWC video footage did not record audio prior to the officers' approach of § 87(2)(b) on foot and is not clear enough to corroborate or refute the officers' claim that § 87(2)(b) directed profanity at them prior to being stopped.

According to New York Penal Law Section 240.20 (3) (BR9), a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk in a public place, uses abusive or obscene language, or makes an obscene gesture.

In People v. Baker, 20 N.Y. 3d 354 (2013) (BR20), the court ruled that critical to a charge of disorderly conduct is a finding that the defendant's disruptive statements and behavior were of a public rather than an individual dimension. This requirement stems from the mens rea component, which requires proof of an intent to threaten public safety, peace or order or the reckless creation of such a risk. Thus, a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem.

§ 87(2)(g)
In the BWC video, when PO Maden, PO Trusewicz, and SGT Barletta first responded at the location, there was a lone passerby who briefly stopped to observe the incident. No crowd is seen gathering around them, contrary to what SGT Barletta testified. § 87(2)(g)

the video evidence obtained shows that § 87(2)(b) agreed to provide identification and was reaching for his identification when PO Maden grabbed his arm and detained him. § 87(2)(g)

Allegation (C) Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b).

Allegation (D) Abuse of Authority: Sergeant Joanna Barletta threatened § 87(2)(b) with the use of force.

Allegation (E) Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b).

Allegation (F) Abuse of Authority: Sergeant Joanna Barletta threatened § 87(2)(b) with the use of force.

Allegation (G) Abuse of Authority: Sergeant Joanna Barletta threatened § 87(2)(b) with the use of force.

It is undisputed that SGT Barletta drew her Taser during the incident and pointed it at § 87(2)(b) and § 87(2)(b). SGT Barletta did not ultimately use her Taser on any individuals.

§ 87(2)(b) (BR1), § 87(2)(b) (BR4) and § 87(2)(b) (BR2 and BR3) statements were largely similar. § 87(2)(b) stated that after PO Maden and PO Trusewicz

connected both cuffs to his hands, § 87(2)(b) and § 87(2)(b) approached § 87(2)(b) and the officers at the patrol vehicle. § 87(2)(b) began to record the incident on her cellphone at an arm's distance from the officers. At this time, SGT Barletta unholstered her Taser and pointed it at § 87(2)(b) and § 87(2)(b) who stood next to each other. § 87(2)(b) and § 87(2)(b) each put both of their hands in the air. § 87(2)(b) observed a white light coming out of SGT Barletta's Taser but did not hear any sound. SGT Barletta instructed § 87(2)(b) and § 87(2)(b) to back up and they complied. § 87(2)(b) stated that SGT Barletta had her hand on the trigger of her Taser when she held it. § 87(2)(b) observed a beam of light emitted from the Taser on her body and § 87(2)(b) moved away. § 87(2)(b) did not hear any sound coming from the Taser at any time. § 87(2)(b) stated that SGT Barletta did not point her Taser at anyone specifically. § 87(2)(b) told SGT Barletta that she "Cannot touch her § 87(2)(b) stated that he moved back approximately six feet from SGT Barletta. SGT Barletta holstered her Taser. Neither § 87(2)(b) § 87(2)(b) stated that SGT Barletta used profanity during the incident.

SGT Barletta (BR6) stated that after officers handcuffed § 87(2)(b) § 87(2)(b) stood less than a foot away and began to film the officers. SGT Barletta instructed § 87(2)(b) to move back multiple times and each time she refused. SGT Barletta did not recall how many times she gave instructions for § 87(2)(b) and § 87(2)(b) to move back. During SGT Barletta's CCRB interview, she stated that § 87(2)(b) was permitted to record the incident, but she had to do it from a safe distance. At this time, § 87(2)(b) told SGT Barletta, "I want to punch you in the face, bitch!" SGT Barletta drew her Taser and told § 87(2)(b) to move back multiple times. He did not comply. SGT Barletta pointed her Taser in drive stun mode at § 87(2)(b) and either § 87(2)(b) or § 87(2)(b) SGT Barletta issued the instructions for § 87(2)(b) and § 87(2)(b) to move back, or they will be Tasered. SGT Barletta stated that according to her training, officers were allowed to arc their Tasers in order to gain compliance. SGT Barletta stated that she used discourteous language during the incident to try to control the situation after her previous instructions to step back and disperse were ignored by § 87(2)(b) and § 87(2)(b)

According to SGT Barletta's BWC (BR27), at timestamp 1:33, PO Maden and PO Trusewicz escort § 87(2)(b) to the side of the patrol vehicle. § 87(2)(b) walks towards the patrol vehicle behind the officers at an arm distance. SGT Barletta unholsters her Taser and walks in front of § 87(2)(b) and instructs him to back up. At timestamp 1:40, § 87(2)(b) and § 87(2)(b) approach the patrol vehicle. SGT Barletta says, "Step the fuck back or you will get Tased." At timestamp 1:43, SGT Barletta points her finger at § 87(2)(b) and tells him to "Get back. Get back. Get the fuck back. Get the fuck back or you're gonna get fucking Tased." § 87(2)(b) tells SGT Barletta, "I'll punch you in your fucking face." At timestamp, 1:52, § 87(2)(b) tells SGT Barletta, "You Tase me, I'll punch you. Don't touch me bitch." At timestamp 2:00, § 87(2)(b) records as PO Maden and PO Trusewicz lock § 87(2)(b)'s handcuffs. § 87(2)(b) is approximately two feet from the officers. § 87(2)(b) and § 87(2)(b) approach § 87(2)(b) At timestamp 2:00, SGT Barletta steps in front of § 87(2)(b) and § 87(2)(b) § 87(2)(b) walks forward with her cellphone in front of her. SGT Barletta instructs everyone to move back. At timestamp 2:07, § 87(2)(b) turns her cellphone with the flashlight on at SGT Barletta. At timestamp 2:07, SGT Barletta points her Taser at § 87(2)(b) and instructs her to back up.

According to DCT Case No. 2015-15012 (BR17), "officers are to behave professionally and respectfully towards members of the public and avoid the use of discourteous language; however, officers' use of profanities during stressful street encounters do not constitute misconduct." Officers

may not use profanity when it is intended solely to insult or demean an individual.

§ 87(2)(g)

According to NYPD Patrol Guide Procedure 221-01 (BR13), when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject.

According to NYPD Patrol Guide Section 221-08 (BR12), “Tasers” or Conducted Electrical Weapons (CEW) “can be an effective means of subduing aggressive suspects and emotionally disturbed persons (EDPs)... A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present.” The Patrol Guide section further defined active resistance as “physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.” Before the deployment of CEWs, officers should consider, “a. The nature and severity of the crime/circumstances, b. Actions taken by the subject, c. Duration of the action, d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, e. Whether the subject is actively resisting custody, f. Whether the subject is attempting to evade arrest by flight, g. Number of subjects in comparison to the number of MOS, h. Size, age, and condition of the subject in comparison to the MOS, i. Subject’s violent history, if known.”

§ 87(2)(g)

The Patrol Guide states that officers are authorized to use their Tasers against individuals who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. Neither § 87(2)(b) and § 87(2)(b) were armed, nor did officers believe that they were in possession of any weapons. § 87(2)(g)

Allegation (H) Force: Police Officer Volkan Maden used physical force against § 87(2)(b).

Allegation (I) Force: Police Officer Volkan Maden used a chokehold against § 87(2)(b).

Allegation (J) Force: Police Officer Volkan Maden restricted § 87(2)(b) breathing.

§ 87(2)(b) (BR1) stated that after § 87(2)(b) told PO Maden that he was on his way home and that PO Maden was not doing his job properly by stopping § 87(2)(b) PO Maden approached § 87(2)(b) and attempted to grab him. § 87(2)(b) evaded PO Maden by turning

his body away from him. § 87(2)(b) stepped in between § 87(2)(b) and PO Maden to separate them. PO Maden grabbed § 87(2)(b) with one hand and turned § 87(2)(b) body around. § 87(2)(b) pushed PO Maden's hand away with one hand and used his other hand to push § 87(2)(b) arm. PO Maden approached § 87(2)(b) again and picked him up at an approximately height of a school desk and slammed him to the ground.

§ 87(2)(b) (BR4) stated that he told PO Maden to leave § 87(2)(b) alone because he was on his way home. PO Maden ignored § 87(2)(b) and attempted to grab § 87(2)(b) backpack. § 87(2)(b) swiped PO Maden's hand away and PO Maden grabbed § 87(2)(b) with both hands, as if he was coming in for a hug. § 87(2)(b) pushed PO Maden away with both of his hands. § 87(2)(b) began to record PO Maden on his cellphone and told him that he recorded his shield number. PO Maden grabbed § 87(2)(b) arms and then pushed him to the ground. PO Maden placed § 87(2)(b) arms behind his back and placed his knee on his neck. § 87(2)(b) told PO Maden to get off his neck multiple times and PO Maden did not. § 87(2)(b) stated that he had difficulty breathing and repeatedly told PO Maden, "My neck, my neck, my neck! Get off my neck. Get off of me!" PO Maden had his knee on § 87(2)(b) neck for approximately five to six minutes and then applied handcuffs on § 87(2)(b). § 87(2)(b) sustained a scrape on the corner of his right eye as of result of PO Maden's action.

§ 87(2)(b) (BR2 and BR3) stated that when § 87(2)(b) began to record the incident, he yelled, "What are you doing?" at the officers. § 87(2)(b) told § 87(2)(b) to calm down and at this time, PO Maden approached § 87(2)(b) grabbed him, and placed him on the ground. § 87(2)(b) did not state that PO Maden placed his knee on § 87(2)(b) neck.

PO Maden (BR7) stated when § 87(2)(b) approached him at the patrol vehicle, he bladed his body and balled his fists. § 87(2)(b) was very close to his face. PO Maden instructed § 87(2)(b) to go away, and § 87(2)(b) refused. § 87(2)(b) asked § 87(2)(b) to calm down and he continued to blade his body. PO Maden stated that § 87(2)(b) was engaged in disorderly conduct at this time. PO Maden felt that § 87(2)(b) wanted to strike him and run away based on his body language and that he had seen similar incidents on the social networking site, Instagram. PO Maden grabbed § 87(2)(b) and "gently" took him to the ground in a controlled manner and placed handcuffs on him. PO Maden stated that § 87(2)(b) did not resist when he grabbed him. PO Maden stated that he did not slam § 87(2)(b) and that he used minimal necessary force to effect § 87(2)(b) arrest.

PO Trusewicz (BR8) stated that when he and PO Maden escorted § 87(2)(b) next to the patrol vehicle, § 87(2)(b) attempted to create distance between § 87(2)(b) and the officers by pushing PO Maden. § 87(2)(b) told § 87(2)(b) to "chill." PO Trusewicz and PO Maden asked § 87(2)(b) for his identification again and he refused, and PO Trusewicz placed § 87(2)(b) in handcuffs. At this time, § 87(2)(b) balled his fist in the air and took a fighting stance towards PO Maden. PO Trusewicz turned around to face § 87(2)(b). PO Trusewicz told § 87(2)(b) to relax and asked him to tell § 87(2)(b) to calm down. PO Trusewicz stated that he did not observe what the interaction between PO Maden and § 87(2)(b) was like at this time because his head faced § 87(2)(b) and that he was focused on holding § 87(2)(b) next to the patrol vehicle. PO Trusewicz did not observe PO Maden pick up § 87(2)(b) off the ground nor PO Maden slamming him to the ground. PO Trusewicz stated § 87(2)(b) was physically slimmer than PO Maden and that if PO Maden slammed him to the ground, he would have heard it.

SGT Barletta (BR6) stated that PO Maden conducted a forcible takedown of § 87(2)(b). SGT

Barletta did not know why the takedown was conducted. SGT Barletta stated that she did not recall PO Maden or any other officers picking up § 87(2)(b) or any individual and then slamming them to the ground. SGT Barletta stated at this time, § 87(2)(b) refused officers' instructions to place his arms behind his back for the application of handcuffs. SGT Barletta requested additional officers to the location at this time.

According to SGT Barletta's BWC video (BR27), at timestamp 1:10, § 87(2)(b) tells PO Maden that he is harassing him and his friends. PO Maden grabs § 87(2)(b) on the right shoulder and says to him, "Come on, Come on. Come to the precinct. Come on tough guy. Let's do this." § 87(2)(b) steps in front of § 87(2)(b) and PO Maden and uses his right arm to separate the both of them. At timestamp 1:20, § 87(2)(b) tells PO Maden that he would present his identification. PO Maden tells § 87(2)(b) to tell § 87(2)(b) to leave the location. PO Maden accuses § 87(2)(b) of telling officers to "Get the fuck out of here," when they arrived. At timestamp 1:28, § 87(2)(b) points to his chest and asks PO Maden if he thought he said that to him. PO Maden instructs § 87(2)(b) to present his identification. § 87(2)(b) begins to unzip his cross-body bag and at this time, PO Maden pulls on § 87(2)(b) arm and escorts him next to the patrol vehicle. PO Maden tells § 87(2)(b) "Don't do that to me. You're dealing with the wrong guy." At timestamp 2:07, § 87(2)(b) records on his cellphone and steps forwards in the direction of PO Maden, PO Trusewicz, and § 87(2)(b). § 87(2)(b) voice is heard yelling, "What's your badge number?" three times. § 87(2)(b) is not in frame at this time. At timestamp 2:16, PO Maden extends both of his arms forward at § 87(2)(b) blades his body and slightly bends his legs. At timestamp 2:17, § 87(2)(b) backpedals away from PO Maden, and yells, "I got your badge number, bitch!" § 87(2)(b) straightens his shoulders and walks towards PO Maden. At timestamp 2:22, PO Maden runs towards § 87(2)(b) and hold his torso with both of his hands. § 87(2)(b) holds onto PO Maden's right arm and bends his back forward. § 87(2)(b) appears to shift his body weight from left and right with his shoulders squared. At timestamp 2:25, PO Maden, turns § 87(2)(b) body around and repeatedly tells § 87(2)(b) "You're coming too now. You're coming too now." § 87(2)(b) falls to the ground.

According to PO Maden's BWC video (BR25), at timestamp 2:34, PO Maden places both of § 87(2)(b) arms behind his back and SGT Barletta applies handcuffs on § 87(2)(b). PO Maden's right leg is visible in the frame while his left leg is not. No officer placed their legs on the back side of § 87(2)(b) torso or neck. At timestamp 2:56, PO Maden picks up § 87(2)(b) from the ground and § 87(2)(b) picks up § 87(2)(b) cellphone and hat. The video did not capture when § 87(2)(b) dropped his cellphone or hat. PO Maden escorts § 87(2)(b) to the rear of the patrol vehicle. At timestamp 3:34, § 87(2)(b) yells for § 87(2)(b) to "call somebody". § 87(2)(b) yells at PO Maden, "What's up with ya'll. You tryna lock me up for what? You bum-ass fucking cop."

According to NYPD Patrol Guide Procedure 221-01 (BR13), officers are allowed to use force "to stabilize a situation and reduce the immediacy of the threat so that more time, options, and/or resources become available. The goal is to gain the voluntary compliance of the subject, when appropriate and consistent with personal safety, to reduce or eliminate the necessity to use force." Officers are forbidden from using chokeholds.

§ 87(2)(g)
§ 87(2)(b) from the BWC video obtained, it is clear that PO Maden did not at any time slam § 87(2)(b) to the ground nor placed his knee on § 87(2)(b) neck. § 87(2)(g)

§ 87(2)(g)

Allegation (K) Discourtesy: Sergeant Joanna Barletta spoke discourteously to § 87(2)(b).

Allegation (L) Force: Sergeant Andrew Hong used physical force against § 87(2)(b).

It is undisputed that after § 87(2)(b) and § 87(2)(b) were placed in handcuffs, they were transported to the 90th Precinct station house and issued summonses for disorderly conduct. § 87(2)(b) was not arrested nor issued any summonses as of result of this incident.

§ 87(2)(b) stated (BR1) that after PO Trusewicz escorted § 87(2)(b) to the patrol vehicle, § 87(2)(b) turned his head around and observed SGT Barletta, and four additional officers surrounding § 87(2)(b) on the ground with her stomach side down. § 87(2)(b) did not know how § 87(2)(b) got on the ground. An unidentified officer placed their knee on § 87(2)(b) back for approximately one minute before officers placed her in handcuffs and escorted her to a patrol vehicle. § 87(2)(b) did not mention SGT Barletta using the phrase, “Fucking ninety-two them,” when instructing officers to arrest § 87(2)(b).

§ 87(2)(b) stated (BR2 and BR3) that after § 87(2)(b) and § 87(2)(b) were detained next to the patrol vehicle, she was called her friend on the phone to explain the incident. At this time, SGT Barletta approached § 87(2)(b) and told her, “You’re coming with us too.” SGT Barletta grabbed § 87(2)(b) left arm. SGT Barletta instructed the additional officers grab § 87(2)(b) right arm. SGT Barletta and the officers guided her to the ground. § 87(2)(b) laid on the ground stomach side down. § 87(2)(b) stated that she was not pushed by officers. § 87(2)(b) was placed in handcuffs and escorted to a patrol vehicle. § 87(2)(b) did not mention SGT Barletta using the phrase, “Fucking ninety-two them,” when instructing officers to arrest § 87(2)(b).

§ 87(2)(b) stated (BR 4) that after officers escorted § 87(2)(b) inside a patrol vehicle, he observed SGT Barletta pointing her Taser at § 87(2)(b) for a second time and instructed her to get on the ground. § 87(2)(b) complied and laid stomach side down. Approximately five officer circled around § 87(2)(b) observed officers grabbing § 87(2)(b) arms and placing her in handcuffs. § 87(2)(b) did not state that SGT Barletta used the phrase, “Fucking ninety-two them,” when instructing officers to arrest § 87(2)(b). § 87(2)(b) did not state that any officers placed their knee on § 87(2)(b) back.

SGT Barletta (BR6) stated that when additional officers arrived at the location, she continued to instruct § 87(2)(b) to step back. § 87(2)(b) refused, and SGT Barletta placed § 87(2)(b) hands behind her back to be placed in handcuffs. SGT Barletta made the decision to arrest § 87(2)(b) because she refused instructions to disperse. The other officers on scene placed § 87(2)(b) to the ground and applied handcuffs on her.

§ 87(2)(b) was transported to the 90th Precinct station house with § 87(2)(b) and § 87(2)(b) issued summonses for disorderly conduct and then released. SGT Barletta denied either herself or any other officers placed their knee on § 87(2)(b) back.

PO Maden's (BR7) and PO Trusewicz's (BR8) statements were mostly similar. PO Maden stated that after he placed § 87(2)(b) in handcuffs and escorted § 87(2)(b) next to the patrol vehicle, he heard SGT Barletta and other officers instructing § 87(2)(b) to leave the location. § 87(2)(b) refused the officers' instructions and officers began to restrain her. PO Maden did not observe any officers take § 87(2)(b) to the ground nor observed any officers place their knee on her back. PO Trusewicz stated he was aware that § 87(2)(b) was placed in handcuffs and ultimately arrested. PO Trusewicz did not know who placed § 87(2)(b) in handcuffs or the circumstances that led to her arrest. PO Trusewicz did not know whether § 87(2)(b) was taken to the ground. PO Trusewicz did not know nor observed any officers place their knee on § 87(2)(b) back.

According to SGT Barletta's BWC (BR27), at timestamp 3:33, § 87(2)(b) and § 87(2)(b) stand next to the patrol vehicle, while PO Trusewicz holds § 87(2)(b) and PO Maden holds § 87(2)(b). § 87(2)(b) yells at officers that they stopped § 87(2)(b) for no reason. SGT Barletta instructs § 87(2)(b) and § 87(2)(b) to disperse nine times and they refuse. At timestamp 4:16, additional officers arrive at the location. SGT Barletta instructs § 87(2)(b) to back up and to leave the location. § 87(2)(b) squares her shoulders and thrusts them forward at SGT Barletta. § 87(2)(b) yells, "I don't have to go nowhere... What is wrong with you! I don't have to back up for nobody!" At timestamp 4:56, § 87(2)(b) continues to yell and walks away from SGT Barletta. At timestamp 4:58, § 87(2)(b) reapproaches SGT Barletta and yells, "All you bum-ass cops, you come here for what?" At timestamp 5:00, § 87(2)(b) squares her shoulders and thrusts them forward at SGT Barletta and yells, "What the fuck am I doing? Do it! Do it!" SGT Barletta instructs § 87(2)(b) to leave the location. § 87(2)(b) squares her shoulders and yells at SGT Barletta, "Do it!" At timestamp 5:09, SGT Barletta says to the other officers, "Fucking ninety-two them."

According to PO Collins' BWC (BR28), at timestamp 1:43, SGT Barletta approaches § 87(2)(b) next to a fence and grabs her arms. § 87(2)(b) moves her arms in an upward motion while SGT Barletta holds them. Additional officers move in. SGT Hong holds § 87(2)(b) with both arms and walks her away from the fence. SGT Hong places § 87(2)(b) on the ground and officers apply handcuffs on her. § 87(2)(b) yells, "What's up, bro!" At timestamp 2:05, officer pick up § 87(2)(b) from the ground.

According to DCT Case No. 2015-15012 (BR17), "officers are to behave professionally and respectfully towards members of the public and avoid the use of discourteous language; however, officers' use of profanities during stressful street encounters do not constitute misconduct." Officers may not use profanity when it is intended solely to insult or demean an individual.

As stated in Allegation E, the use of the word "fucking" by SGT Barletta when issuing instructions to other officers § 87(2)(g)

§ 87(2)(g) According to the BWC video obtained, while some

force was used to restrain and guide § 87(2)(b) to the ground, none of the officers involved placed their knee on § 87(2)(b) back when she was on the ground.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR19).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR11).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR19).
- PO Maden has been a member of service for seven years and has been a subject in 13 CCRB complaints and fifty-two allegations, of which ten were substantiated:
 - CCRB Case #202000861 involved a substantiated allegation of discourteous language. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - CCRB Case #202001765 involved substantiated allegations of failure to provide RTKA. The Board recommended Command Discipline B and the NYPD imposed no disciplinary action.
 - CCRB Case #202003614 involved frisk, threat of arrest and force, vehicle search, discourteous word, and offensive language. The CCRB recommend charges and command Discipline A and the NYPD has not yet imposed discipline.
 - CCRB Case #2020008322 involved substantiated allegation of failure to provide RTKA. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.

§ 87(2)(g)

- SGT Barletta has been a member of service for eleven and has been a subject in five CCRB complaints and twenty-four allegations, none of which were substantiated. § 87(2)(g)
- PO Trusewicz has been a member of service for four years and has been a subject in two CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of January 24, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR24).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator:	Jeffrey Tsui Signature	INV Jeffrey Tsui Print Title & Name	02/01/2023 Date
Squad Leader:	 Signature	IM Simon Wang Print Title & Name	02/01/23 Date

Reviewer:

Signature

Print Title & Name

Date